are limitations on the legislative authority in the shape of fundamental rights, questions do arise as to whether the legislature in a particular case has or has not, in respect of the subject-matter of the statute or in the method of enacting it, transgressed the limits of its constitutional powers. Such transgression may be patent, manifest or direct, but it may also be disguised, covert and indirect and it is to this latter class of cases that the expression 'colourable legislation' has been applied in judicial pronouncements.

2. The idea conveyed by the expression that although apparently a legislature in passing a statute purported to act within the limits of its powers, yet in substance and in reality it transgressed these powers, the transgression being veiled by what appears, on proper examination, to be a mere pretence or disguise.

3. It is the substance of the Act that is material and not merely the form or outward appearance, and if the subject-matter in substance is something which is beyond the powers of that legislature to legislate upon, the form in which the law is clothed would not save it from condemnation.

4. The legislature cannot violate the constitutional prohibitions by employing an indirect method. In cases like these, the enquiry must always be as to the true nature and character of the challenged legislation, and it is the result of such investigation and not the form alone that will determine as to whether or not it relates to a subject which is within the power of the legislative authority. For the purpose of this investigation the court would certainly examine the effect of the legislation and take into consideration its object, purpose or design. But these are only relevant for the purpose of ascertaining the true character and substance of the enactment and the class of subjects of legislation to which it really belongs and not for finding out the motives which induced the legislature to exercise its powers.

5. The doctrine of colourable legislation does not involve any question of *bona fides* or *mala fides* on the part of the legislature. The whole doctrine resolves itself into the question of competency of a particular legislature to enact a particular law. If the legislature is competent to pass a particular law, the motives which impelled it to act are really irrelevant. On the other hand, if the legislature lacks competency, the question of motive does not arise at all. Whether a statute is constitutional or not in thus always a question of power.

6. A Court must be blind indeed if it looks merely at the language of a statute and ignores its obvious purpose, effect and operation. Hence, when, a statute is impugned as being a mere colourable device to evade constitutional provisions, the Court is required to scrutinize in its entirety, the impugned statute as well as other Bills or Acts which may form part of a scheme for such evasion, for the purpose of ascertaining "the true nature and character" or "pith and substance" of the impugned statute. Sometimes, it may so happen that statute, when considered independently, may be free from any objection but if it could be shown that it is part of a general scheme on the part of the Legislature, by a series of Acts to achieve an object which it could not validly achieve in one piece of legislation, the statute would also be struck down as unconstitutional.

3. Doctrine of Fraud on the Constitution

The doctrine of colourable legislation is also known as the doctrine of fraud on the constitution. The Supreme Court, in this context, has made the following observation[30]: